

STATE OF NEW YORK

1850--A

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sens. HINCHEY, ASHBY, BORRELLO, CANZONERI-FITZPATRICK, HELMING, KAVANAGH, MATTERA, MAY, MURRAY, RHOADS, ROLISON, STEC, TEDISCO, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to establishing the safe water infrastructure action program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The environmental conservation law is amended by adding a
2 new article 78 to read as follows:

ARTICLE 78

SAFE WATER AND INFRASTRUCTURE ACTION PROGRAM

5 Section 78-0101. Safe water and infrastructure action program.

6 § 78-0101. Safe water and infrastructure action program.

7 1. Notwithstanding any other provisions of this chapter or any other
8 law and subject to an appropriation made therefor and in accordance with
9 the provisions of this section and with the rules and regulations
10 promulgated by the commissioner in connection therewith, on and after
11 the first day of April, two thousand twenty-six, a consolidated local
12 infrastructure program is hereby established for the purpose of making
13 payments toward the replacement and rehabilitation of existing local
14 municipally-owned and funded drinking water, storm water and sanitary
15 sewer systems. For purposes of this section, such program shall apply to
16 any drinking water system, storm water system or sanitary sewer system
17 within the state that is under the maintenance and/or operational juris-
18 isdiction of a county, city, town, village or public authority; provided,
19 however, that such system shall not be under the maintenance and/or
20 operational jurisdiction of a private entity; and provided further,
21 however, that no more than ten percent of the moneys paid under the
22 program shall be paid toward replacement and rehabilitation of drinking
23 water, storm water, and sanitary sewer systems under the maintenance

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 and/or operational jurisdiction of any one county, city, town, village,
2 or public authority. The commissioner, in conjunction with the environ-
3 mental facilities corporation, shall promulgate all necessary rules and
4 regulations to carry out the program so that an equitable distribution
5 of aid shall be made for the general operation and/or general mainte-
6 nance of any such existing drinking water system, storm water system or
7 sanitary sewer system. Existing water infrastructure includes all the
8 man-made and natural features that move and treat water in terms of
9 drinking water, waste water, and storm water. Monies from this fund may
10 be used for maintenance and repairs of existing water infrastructure as
11 well as new water infrastructure expansion, but only into already devel-
12 oped areas so as not to support sprawl and development of natural areas.
13 Already developed areas are those that are zoned/defined by munici-
14 palities as of January first, two thousand twenty-five as commercial and
15 residential use.

16 2. On or before the twenty-fifth day of April, June, September and
17 November of each state fiscal year commencing with the state fiscal year
18 beginning on April first, two thousand twenty-seven, there shall be
19 distributed and paid to counties, cities, towns, villages and public
20 authorities an amount equal to the moneys appropriated for the purposes
21 of this section divided by the number of payment dates in that state
22 fiscal year. Such amounts shall be distributed and paid pursuant to
23 subdivision three of this section.

24 3. Amounts shall be distributed for local drinking water, storm water
25 and sanitary sewer systems based upon a funding formula that the depart-
26 ment and the department of health shall create taking into consideration
27 factors including but not limited to: the system's length and width of
28 pipes; other physical assets maintained by the system, including treat-
29 ment facilities and pumping stations; the age of the system's infras-
30 tructure; and relevant socioeconomic factors, including the presence of
31 disadvantaged communities within a system's service area, to achieve an
32 equitable distribution of aid.

33 4. Monies made available may be used to match other state and federal
34 funds made available for such projects. The remainder of the apportion-
35 ment may be used for any existing drinking water, storm water or sewer
36 system purchases, including but not limited to, the acquisition of mate-
37 rials for the replacement or rehabilitation.

38 5. For any city, town, village or public authority which proposes
39 infrastructure consolidation under this section or merges with another
40 municipality, the funds appropriated under this section may fund costs
41 associated with such consolidation.

42 6. For each fiscal year, starting in two thousand twenty-seven, funds
43 are to be made available to the local infrastructure assistance account
44 of the general fund, and distributed from that account.

45 7. At the end of each fiscal year, each county, city, town, village
46 and public authority that receives funding pursuant to this section
47 shall submit an annual report to the department detailing how such money
48 was used. The department shall compile all reports and submit them to
49 the comptroller for their review. Once a report is finalized, it shall
50 be made publicly available on the department's website. The department
51 and the comptroller shall reserve the right to conduct sight visits to
52 ensure the money is being used accurately.

53 § 2. This act shall take effect on the thirtieth day after it shall
54 have become a law.